

Narendra Singh Panwar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 August 2016 · WRIT - C No. 40469 of 2016 · **Recovery citation stayed; writ connected and listed.**

HEADNOTE

Pending a challenge to clause 4.3(f)(v) of the Electricity Supply Code, 2005, the Allahabad High Court connected Writ-C No. 40469 of 2016 with Writ-C No. 8370 of 2016, issued notice to the Advocate General and respondent no. 7, and directed that the recovery citation shall not be enforced against the petitioner, while leaving the respondents free to recover the dues from respondent no. 7. Later orders only listed the matter.

FACTUAL SUMMARY

Narendra Singh Panwar filed Writ-C No. 40469 of 2016 at the Allahabad High Court against the State of Uttar Pradesh and six others after a recovery citation was issued against him. Clause 4.3(f)(v) of the Electricity Supply Code, 2005 was under challenge in connected Writ-C No. 8370 of 2016. The Division Bench connected the petitions and issued notice to the Advocate General and respondent no. 7. Subsequent orders of 5 September 2016 and 24 February 2023 only listed the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

interim stay of recovery pending challenge to clause 4.3(f)(v)

HOLDING

Because clause 4.3(f)(v) of the Electricity Supply Code, 2005 was under challenge in the connected writ, the Court issued notice to the Advocate General and respondent no. 7, directed that the recovery citation shall not be enforced against the petitioner, and left it open to the respondents to recover the dues from respondent no. 7, while connecting and listing the petition. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises Pending a challenge to clause 4.3(f)(v) of the Electricity Supply Code, 2005, the Allahabad High Court connected Writ-C No. 40469 of 2016 with Writ-C No. 8370 of 2016, issued notice to the Advocate General and respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V) OF THE ELECTRICITY SUPPLY CODE, 2005

Notice issued to the Advocate General; the clause was not construed or upheld on merits. ¶ 1

NOT DECIDED — MERITS OF THE PETITIONER'S LIABILITY FOR THE ELECTRICITY DUES

¶ 1